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UNITED STATES BANKRUPTCY COURT
NORTHERN DISTRICT OF MISSISSIPPI

IN RE: *Example Debtor, Jane Q.* Debtor.	CASE NO. 26-00000-JDW Chapter 7
EXAMPLE CREDITOR BANK PLAINTIFF v. JANE Q. EXAMPLE DEFENDANT	ADV. PROC. NO. 26-00000-JDW

COMPLAINT TO DETERMINE DISCHARGEABILITY OF DEBT

PRELIMINARY STATEMENT

1. Plaintiff Example Creditor Bank ("Plaintiff") brings this adversary proceeding under 11 U.S.C. § 523(a)(2)(A) and § 523(a)(6) to determine that a debt owed by the Defendant is excepted from discharge. This sample is synthetic. Its names, numbers and addresses are fictional and exist only to exercise the template.

JURISDICTION AND VENUE

2. The Court has jurisdiction over this adversary proceeding under 28 U.S.C. §§ 1334 and 157 and the standing order of reference of the United States District Court for the Northern District of Mississippi. This is a core proceeding under 28 U.S.C. § 157(b)(2)(I).

3. Venue is proper in this district and division under 28 U.S.C. § 1409(a) because the main bankruptcy case is pending here.

4. The Plaintiff consents to entry of final orders and judgment by the Bankruptcy Judge.

PARTIES

5. Plaintiff Example Creditor Bank is a state-chartered bank with its principal place of business in Mississippi, and is a creditor of the Debtor within the meaning of 11 U.S.C. § 101(10).

6. Defendant Jane Q. Example is the Debtor in the above-captioned Chapter 7 case, filed on the petition date stated in the case docket, and resides in Hinds County, Mississippi.

FACTUAL BACKGROUND

7. On a date stated in the loan file, the Plaintiff made a loan to the Defendant in the principal amount of $50,000, secured by no collateral (the "Loan").

8. In applying for the Loan, the Defendant submitted a written financial statement that listed a monthly income figure, a list of existing debts and a statement that no judgments were pending against the Defendant.

9. The financial statement was materially false. The Defendant's actual monthly income was less than half the figure listed, and the Defendant had at least two judgments pending at the time of signing.

10. The Plaintiff relied on the financial statement in deciding to make the Loan and would not have made the Loan on the terms given had it known the true figures.

11. Within ninety days before the petition date, the Defendant made a transfer of funds from the Loan proceeds to a relative, without consideration and with the intent to hinder the Plaintiff's collection.

12. The Defendant filed a voluntary petition under Chapter 7 on the petition date. The Defendant listed the Loan as an unsecured debt on the schedules.

13. The Plaintiff timely filed a proof of claim in the Debtor's case. The Plaintiff now seeks a determination that the Loan is excepted from discharge.

COUNT I: NONDISCHARGEABILITY UNDER 11 U.S.C. § 523(A)(2)(A)

14. Plaintiff incorporates the preceding paragraphs as if fully set forth.

15. The Defendant obtained money from the Plaintiff by false pretenses, a false representation, or actual fraud, namely the false financial statement described above.

16. The Defendant made the representations knowing they were false, or with reckless disregard for their truth, and intended the Plaintiff to rely on them.

17. The Plaintiff justifiably relied on the representations in making the Loan.

18. The Plaintiff was damaged in the amount of the unpaid principal and accrued interest on the Loan.

19. The debt arising from the Loan is therefore excepted from discharge under 11 U.S.C. § 523(a)(2)(A).

COUNT II: NONDISCHARGEABILITY UNDER 11 U.S.C. § 523(A)(6)

20. Plaintiff incorporates the preceding paragraphs as if fully set forth.

21. The transfer described above was made by the Defendant to a relative without consideration and with the intent to hinder, delay or defraud the Plaintiff.

22. The transfer caused the Plaintiff injury in the amount of the transferred funds.

23. The injury was willful and malicious within the meaning of 11 U.S.C. § 523(a)(6).

REQUEST FOR RELIEF

WHEREFORE, the Plaintiff respectfully requests that the Court enter judgment:

(a) determining that the debt owed to the Plaintiff arising from the Loan is excepted from discharge under 11 U.S.C. § 523(a)(2)(A) and (a)(6);

(b) awarding the Plaintiff a money judgment against the Defendant in the amount of the unpaid principal and accrued interest on the Loan, in an amount to be proven at trial;

(c) denying the Defendant a discharge of that debt; and

(d) granting such other and further relief as the Court deems just and proper.

DEMAND FOR JURY TRIAL

24. Plaintiff does not demand a jury trial in this proceeding.

Respectfully submitted,

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